

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
CLOVER M. BARRETT,

Plaintiff,

INDEX NO.: _____

-VS-

SUMMONS

THE CITY OF NEW YORK;
POLICE OFFICER RAYMOND WHITE,
POLICE OFFICER MICHAEL HIDALGO
JOHN DOES #1-3

Venue is based on the
County in which the cause
of action arose

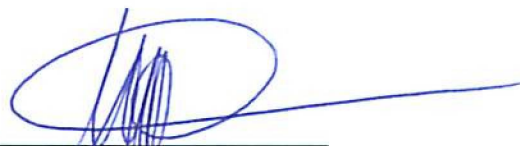
Defendants.
-----X

TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to Answer the Verified Complaint in this action and to serve a copy of your Answer, or, if the Complaint is not served with this Summons, to serve a notice of appearance, on the Plaintiff, within 20 days after the service of this Summons, exclusive of the day of service (or within 30 days after the service is complete if this Summons is not personally delivered to you within the State of New York).

In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Brooklyn, New York
December 6, 2019



CLOVER M. BARRETT
Plaintiff
338 Atlantic Avenue, Suite 201
Brooklyn, New York 11201
(718) 625-8568

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS**

-----X **COMPLAINT AND
JURY DEMAND**

CLOVER M. BARRETT**Plaintiff,****-against-****THE CITY OF NEW YORK;
POLICE OFFICER RAYMOND WHITE,
POLICE OFFICER MICHAEL HIDALGO
JOHN DOES #1-3****Defendants.**

----- X

Plaintiff, CLOVER M. BARRETT, alleges the following as her Verified Complaint
against THE CITY OF NEW YORK; POLICE OFFICER RAYMOND WHITE individually and
in his official capacity as New York City Police officer, POLICE OFFICER MICHAEL
HIDALGO individually and in his official capacity as New York City Police officer, and JOHN
DOES #1-3

PARTIES

1. The Plaintiff, Clover Barrett, at all times herein mentioned was and still is a resident of the Kings County, State of New York.
2. At all times herein mentioned, Defendant THE CITY OF NEW YORK (hereinafter the 'CITY'), was and still is municipal corporation, created, organized and existing under and by virtue of the laws of the State of New York.
3. That at all times mentioned herein, Defendant CITY, operated, maintained, managed and controlled the Police Department of the City of New York.

4. That the Police Department of the City of New York is an agency, instrumentality, department of Defendant, CITY, and /or Defendant, CITY derived benefit from the activities of the Police Department of the City of New York.

5. That at all times herein mentioned , Defendant, POLICE OFFICER RAYMOND WHITE (“WHITE”), an individual, was and is an officer of the Defendant, CITY, and was employed by the Police Department of the City of New York as a police officer and at all times herein was acting in such capacity as the agent, servant and employee of the CITY.

6. That at all times, mentioned herein, Defendant WHITE was acting under color of law and authority as a police officer employed by the Police Department of the City of New York.

7. Defendant, POLICE OFFICER MICHAEL HIDALGO (“HIDALGO”), an individual, was and is an officer of the Defendant, CITY, and at all times herein was acting in such capacity as the agent, servant and employee of the CITY.

8. That at all times, mentioned herein, Defendant, HIDALGO, was acting under color of law and authority as a police officer employed by the Police Department of the City of New York.

9. Police Officers JOHN DOES 1- 3 (John Doe Police Officers) refer to police officers who participated in the relevant acts in support of the claims herein but whose identities are unknown to Plaintiff at this time.

PRELIMINARY STATEMENT

10. This is an action for damages sustained as a result of the false arrest and malicious prosecution of the Plaintiff.

11. The claims arise from a September 7, 2018, incident in which Officers of the

New York City Police Department ("NYPD"), intentionally and willfully and or recklessly and negligently, subjected Plaintiff to, inter alia, false arrest and false imprisonment as well as malicious prosecution.

12. Plaintiff seeks monetary damages (special, compensatory, and punitive) against Defendants, as well as an award of costs and attorneys' fees, and such other and further relief as the Court deems just and proper.

13. Prior to the commencement of this action, a written Notice of Claim was served on behalf of Plaintiff, upon THE CITY OF NEW YORK in accordance with Section 50-e of the General Municipal Law.

14. Within ninety days (90) of the termination of the criminal prosecution of Plaintiff, a notice of claim in writing was served on behalf of Plaintiff upon the CITY OF NEW YORK, on or about August 7, 2019, notifying the CITY of Plaintiff's malicious prosecution claim.

15. In a Decision and Order dated October 22, 2019, Plaintiff was granted leave to file a late notice of claim for the false arrest and imprisonment claim upon the CITY OF NEW YORK which was served in writing on behalf of Plaintiff upon the CITY OF NEW YORK, on or about August 7, 2019.

16. Although more than thirty (30) days have elapsed since service of the notice of claims, the CITY OF NEW YORK neglected and has refused to pay said claim or adjust same.

17. That this action is being commenced within one year and ninety days after the happening of the event upon which the claim is based.

AS AND FOR A FIRST CAUSE OF ACTION
(FALSE ARREST & IMPRISONMENT)

18. Plaintiff repeats and reiterates the allegations contained in the paragraphs numbered above with the same force and effect as though fully set forth herein.

19. On or about September 7, 2018, in the county of Kings, New York, the Plaintiff was unlawfully detained, arrested, imprisoned and subsequently prosecuted pursuant to a Criminal Court Complaint, Docket Number CR 04641318KN, by agents, servants and/or employees of Defendant, CITY OF NEW YORK.

20. That the aforesaid arrest and imprisonment was malicious, unlawful and not based upon probable cause, and/or any other justification, and was therefore a false arrest and imprisonment.

21. That Defendant CITY, through its agents, servants and/or employees, including Defendant, WHITE, Defendant, HIDALGO, and Defendants, John Doe Police Officers, acted in bad faith and without probable cause in committing the aforesaid arrest and, imprisonment of Plaintiff.

22. At the time of her unlawful arrest and imprisonment, Plaintiff had not committed or attempted to commit any illegal act.

23. At the time of Plaintiff's unlawful arrest and imprisonment, the Defendants knew or should have known, through the exercise of proper procedure and reasonable investigation, that the aforementioned arrest and imprisonments was false and without probable cause.

24. That the aforesaid arrest and imprisonment was made with knowledge of and/or negligent and/or reckless disregard of the material falseness of the criminal complaint (s).

25. The aforesaid false arrest and imprisonment caused Plaintiff to suffer severe physical injuries, emotional and psychological distress, anguish, anxiety, fear, and humiliation, loss of freedom, loss of wages, legal expense, and damage to her reputation.

26. By reason of the foregoing, the Defendants became liable to the Plaintiff for a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

**AS AND A SECOND CAUSE OF ACTION
(FALSE IMPRISONMENT)**

27. Plaintiff repeats and reiterates the allegations contained in the paragraphs numbered above with the same force and effect as though fully set forth herein.

28. That following the initial arrest on September 7, 2018, the Plaintiff was wrongfully detained for several hours in a jail cell at the 84th Precinct at 301 Gold Street, Brooklyn, New York.

29. The Defendants acted in bad faith and without probable cause in committing the aforesaid detention of Plaintiff.

30. At the time of her unlawful detention Plaintiff had not committed or attempted to commit any illegal act.

31. At the time of Plaintiff's unlawful detention, Defendants knew or should have known, through the exercise of proper procedure and reasonable investigation, that the aforementioned detention was improper and without probable cause.

32. That the aforesaid detention was made with knowledge of and/or negligent and/or reckless disregard of the material falseness of the criminal complaints(s).

33. The aforesaid detention caused Plaintiff to suffer physical, emotional and psychological distress, anguish, anxiety, fear, and humiliation, loss of freedom, and damage to her reputation.

34. By reason of the foregoing, the Defendants became liable to the Plaintiff for a sum of money which exceeds the jurisdiction limits of all courts of lesser jurisdiction.

**AS AND FOR A THIRD CAUSE OF ACTION
(MALICIOUS PROSECUTION)**

35. Plaintiff repeats and reiterates the allegations contained in the paragraphs numbered above with the same force and effect as though fully set forth herein.

36. On or about October 23, 2018, the Defendants intentionally, knowingly, recklessly, negligently and with malice caused the commencement of a criminal prosecution against the Plaintiff in the Criminal Court of the City of New York, County of Kings under Docket number CR 04641318KN, without probable cause.

37. In commencing and continuing the said malicious prosecution, Defendants caused Plaintiff to be falsely charged with acts in violation of the Penal Law of the State of New York.

38. The Plaintiff had not committed or attempted to commit any illegal act(s).

39. The Plaintiff had not given Defendant, CITY OF NEW YORK, its agents, servants and/or employees, including Defendant, RAYMOND WHITE, Defendant, MICHAEL HIDALGO or Defendants, John Doe Police Officers, probable cause to believe that she had committed the falsely charged illegal acts.

40. The Defendants knew, or should have known through the exercise of reasonable care and proper police procedure, that the said investigation into this matter was flawed, defective and unsound.

41. The Defendant CITY, its agents, servants and/or employees, including Defendant, RAYMOND WHITE, , Defendant, MICHAEL HIDALGO and Defendants, John Doe Police Officers, willfully, negligently and wrongfully accused the Plaintiff of having committed acts in violation of the Penal Law of the State of New York.

42. The Defendant CITY, its agents, servants and/or employee, including Defendant, RAYMOND WHITE, Defendant, MICHAEL HIDALGO, and Defendants, John Doe Police

Officers, willfully, negligently and wrongfully continue to prosecute the Plaintiff of alleged violations of the Penal Law of the State of New York, even though the Defendants knew or should have known of facts and circumstances that would have lead a reasonable person to conclude that the criminal complaint, upon which said criminal prosecution was based, contained material falsehoods and was otherwise improper, and that the continued prosecution of the Plaintiff was, therefore, improper under the circumstances.

43. That the criminal prosecution against the Plaintiff was dismissed pursuant to the application of the District Attorney to dismiss the criminal complaint in the interest of justice.

44. As a result of the malicious prosecution, the Plaintiff was caused to suffer and continue to suffer severe personal injury, emotional and psychological distress, anguish, anxiety, fear, humiliation, legal expenses and damage to her reputation.

45. The Defendants conduct was willful, wanton, negligent, reckless, malicious and/or exhibited a gross indifference to, and a callous disregard of the rights of the of Plaintiff.

46. By reason of the foregoing, the Defendants became liable to the Plaintiff for a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

**AS AND FOR A FOURTH CAUSE OF ACTION
(INFLECTION OF EMOTIONAL DISTRESS)**

47. Plaintiff repeats and reiterates the allegations contained in the paragraphs numbered above with the same force and effect as though fully set forth herein. Plaintiff repeats and reiterates the allegations contained in paragraphs number above as if fully set forth herein.

48. The aforementioned actions of the Defendants were so outrageous, malicious and shocking that it exceeded all reasonable bounds of decency tolerated by the average member of the community.

49. Defendants acted with desire and intent to cause Plaintiff emotional distress or acted under circumstances known to them which made it substantially certain that they would cause such emotional distress.

50. Defendants, intentionally, knowingly, willfully, recklessly, negligently and wrongfully caused Plaintiff emotional distress or acted under circumstances known to them which made it substantially certain that they would cause such emotional distress.

51. Defendants acted with utter disregard of the circumstances of their actions.

52. As a result, Plaintiff was caused to suffer the infliction of emotional distress.

53. By reason of the foregoing, Defendants became liable to Plaintiff for a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction,

AS AND FOR A FIFTH CAUSE OF ACTION
(NEGLIGENCE)

54. Plaintiff repeats and reiterates the allegations contained in the paragraphs numbered above with the same force and effect as though fully set forth herein.

55. The actions of Defendant CITY, through its agents, servants and/or employees, including Defendant, RAYMOND WHITE, Defendant, MICHAEL HIDALGO and Defendants, John Doe Police Officers, heretofore described, constitute negligence in that Defendant CITY negligently trained or failed to train its agents, servants , or employees, especially including Defendant RAYMOND WHITE, Defendant, MICHAEL HIDALGO and Defendants, John Doe Police Officers.

56. The actions of Defendant CITY, through its agents, servants and/or employees, including Defendant, RAYMOND WHITE, Defendant, MICHAEL HIDALGO and Defendants, John Doe Police Officers heretofore described constitute negligence in that Defendant, CITY, negligently supervised or failed to supervise its agents, servants , or employees, especially including

Defendant, RAYMOND WHITE, Defendant, MICHAEL HIDALGO and Defendants, John Doe Police Officers.

57. The actions of Defendant, CITY, through its agents, servants and/or employees, including Defendant, RAYMOND WHITE, Defendant, MICHAEL HIDALGO and Defendants, John Doe Police Officers, heretofore described, constitute negligence in that Defendant, CITY, negligently disciplined or failed to discipline its agents, servants, or employees, especially including Defendant RAYMOND WHITE, Defendant, MICHAEL HIDALGO and Defendants, John Doe Police Officers.

58. Defendant, CITY, was negligent in its hiring of its agents, servants, and/or employees, especially including Defendant, RAYMOND WHITE, Defendant, MICHAEL HIDALGO and Defendants, John Doe Police Officers who Defendant, CITY, knew, or in the course of adequate and proper investigation should have reasonably known, were unfit to hold their positions.

59. Defendant, CITY, was negligent in its retention of its agents, servants and/or employee, especially including Defendant, RAYMOND WHITE, Defendant, MICHAEL HIDALGO and Defendants, John Doe Police Officers who Defendant, CITY, knew, or in the course of adequate and proper investigation should have reasonably know, were unfit to hold their positions in that they refused or failed to perform within the statutory and constitutional limits of their authority and misused and abused their positions.

60. That the Defendants, their agents, servants, and/or employee were otherwise, and in general, careless, reckless and negligent under the circumstances existing as previously described.

61. All of the causes of action of the complaint are specifically excepted under C.P.L.R. § 1602.

62. As a result of the negligence of Defendant, CITY and the acts of Defendant, RAYMOND WHITE, Defendant, MICHAEL HIDALGO, Defendants, John Doe Police Officers and other agents, servants and/or employee of Defendant CITY, without any negligence on the part of Plaintiff, Plaintiff was caused to suffer severe and permanent personal injuries, pain and suffering, emotional and psychological distress, anguish, anxiety, fear, humiliation, loss of freedom, legal expenses, and damage to her reputation.

63. By reason of the foregoing, Defendants became liable to Plaintiff for a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

**AS AND FOR A SIXTH CAUSE OF ACTION
(VIOLATION OF CIVIL RIGHTS)**

64. Plaintiff repeats and reiterates the allegations contained in the paragraphs numbered above with the same force and effect as though fully set forth herein.

65. The actions of the Defendants heretofore described resulting from the September 7, 2018 arrest, detention and prosecution of the Plaintiff constitute an unlawful arrest and malicious prosecution which deprived Plaintiff of rights, privileges, and immunities as guaranteed under the United States Constitution and the New York State Constitution, Amendments One, Four, Five and Fourteen, the New York State Constitution, the Civil Rights Acts, 42 U.S.C. 1981, 1983, 1985, and 1988 and the complained of conduct was either the result of an official policy or unofficial custom, including but not limited to policies and customs concerning the hiring, training, supervision, retention and discipline of the CITY's agents, servants and/or employees, and those involving the arrest, detention, prosecution of individuals and the conviction of individuals accused of committing penal offense, including especially, those person such as the Plaintiffs who are of African American ethnic descent.

66. That the Defendants established a custom/policy and/or practice of encouraging approving and/or tolerating the use by NYPD of methods of investigation, that involved the fabrication, misrepresentation and concealment of material evidence and other improper investigation techniques and acts of misconduct against civilians and subsequent attempts to conceal such actions by failing to adequately train, supervise, and discipline its agents, employees and officers.

67. That the Defendants were deliberately indifferent to the use of improper procedures in the detention, arrest and prosecution of persons and established a custom and/or policy and/or practice of encouraging, approving and/or tolerating the use of said improper procedures by the NYPD and subsequent attempts to conceal such actions by failing to adequately train, supervise, and discipline its agents, employees and offices.

68. The Defendants deprived Plaintiff of her liberty and First Amendment Rights in violation of her civil rights.

69. The Defendants actions were undertaken under color of law and would not have existed but for said Defendants use of their official power.

70. That the Defendants conspired with each other and with other persons and acted in concert to discriminate against and deprive the Plaintiff of her constitutional and Civil Rights.

71. The supervisors and policy making officers of Defendant, CITY, and its Police Department, as a matter of policy have failed to take steps to terminate the herein above detailed practices and have failed to discipline or otherwise properly supervise the individuals engaged in such practices.

72. The Defendant, CITY, has failed to properly or effectively train its agents, servants and/or employees, including Defendant, RAYMOND WHITE, Defendant, MICHAEL

HIDALGO, and Defendants, John Doe Police Officers, with regard to proper constitutional and statutory limits on the exercise of their authority, and such failure continues to this day.

73. The Defendant, CITY, has sanctioned and consented to the policy practices heretofore described through its deliberate indifference to the effect of such policy and practices upon the constitutional rights of the Plaintiff and others similarly situated.

74. That the Defendants' motivations in engaging in the above described actions were in contravention of the United States Constitution and the Constitution of the State of New York.

75. By reason of the foregoing, the Plaintiff has been damaged and suffered serious and severe permanent physical injuries, property damage, emotional distress and emotional harm as a result of these deprivations of constitutional and civil rights.

76. As a result, the Defendants became liable to Plaintiff for a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

**AS AND FOR A SIXTH CAUSE OF ACTION
(ATTORNEYS FEES)**

77. Plaintiff repeats and reiterates the allegations contained in the paragraphs numbered above with the same force and effect as though fully set forth herein.

78. The actions of the Defendants heretofore described in connection with the September 7, 2018 arrest, detention, imprisonment, and prosecution of the Plaintiff constitute an unlawful arrest, imprisonment, violation of First Amendment Rights, and malicious prosecution which deprived the Plaintiffs of rights, privileges, and immunities as guaranteed under the United States Constitution, Amendment One, Four, Five, and Fourteen, the New York State Constitution, the Civil Rights Act, 42 U.S.C. §§1981, 1983, 1985, 1986, and 1988, and the complained of conduct was either the result of an official policy or unofficial custom, including but not limited to, policies and customs concerning the hiring and training, supervision, retention and discipline of

the CITY's agents servants and/or employees and those involving the arrest, detention, and prosecution of individuals, including and especially those personas such as Plaintiff who are African American ethnic descent.

79. That the Plaintiff has incurred significant attorneys' fees and expenses in the prosecution of the above referenced claims against the Defendants.

80. That in the event that Plaintiff is successful in the prosecution of the aforesaid claims, Plaintiff shall be the prevailing party within the meaning of 42 U.S.C. §1988 and entitled to the recovery of said attorney fees from the Defendants.

81. As a result, the Defendants became liable to the Plaintiff for a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

WHEREFORE, Plaintiff demands judgment against the Defendants, jointly and severally, for a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction, together with the costs and disbursements of this action and for such other and further relief as this Court deems just and proper.

Dated: Brooklyn, New York
December 6, 2019


Yours etc
Clover M. Barrett
338 Atlantic Avenue
Suite 201
Brooklyn, New York 11201
(718) 625-8568

To: OFFICE OF CORPORATION COUNSEL
OF THE CITY OF NEW YORK
Attorneys for the Defendant
The City of New York
100 Church Street
New York, NY 10007

POLICE OFFICER RAYMOND WHITE
c/o NYPD
301 Gold Street
Brooklyn, NY 11201

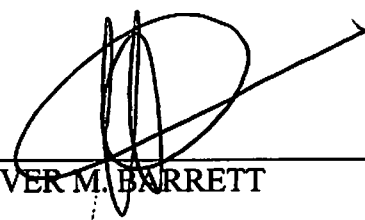
POLICE OFFICER MICHAEL HIDALGO
c/o NYPD
1000 Sutter Avenue
Brooklyn, NY 11208

VERIFICATION

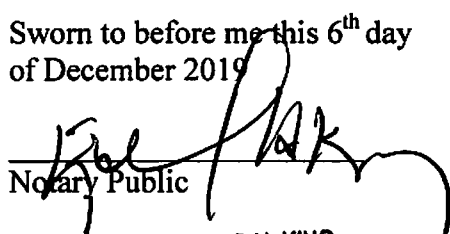
STATE OF NEW YORK)
) ss.:
COUNTY OF KINGS)

CLOVER M. BARRETT, being duly sworn, deposes and says:

I am the plaintiff in this action, and as such I am familiar with the facts and circumstances of this case. I have read the foregoing Complaint and know the contents thereof. The contents of the Complaint are true to my own knowledge, except as to those matters therein stated to be alleged upon information and belief, and as to those matters I believe them to be true.


CLOVER M. BARRETT

Sworn to before me this 6th day
of December 2019


Notary Public

EDWARD H. KING
Notary Public, State of New York
No. 02K15024732
Qualified in Kings County
Commission Expires March 14, 2020